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[TENTATIVE] ORDER GRANTING IN PART DEFENDANT'S MOTIONS TO COMPEL INDEPENDENT MENTAL EXAMINATIONS OF PLAINTIFFS JANE DOE O.A., JANE DOE E.Y., AND JANE DOE R.C.; AND GRANTING DEFENDANT'S MOTION TO SEAL

I. INTRODUCTION

This consolidated action arises from allegations by Plaintiffs Jane Doe O.A., Jane Doe E.Y., and Jane Doe R.C. ("Plaintiffs") against Defendant Tujunga Investment Group LLC dba Pimaan Thai Massage ("Defendant") concerning alleged sexual misconduct during massages performed at Defendant's establishment.

Plaintiffs filed their respective complaints on May 17, 2024, June 21, 2024, and November 8, 2024. On January 22, 2025, the Court deemed the three actions related. On March 6, 2026, the Court consolidated the actions.

On August 26, 2026, Defendant filed the instant motions to compel independent mental examinations of each Plaintiff by Dr. Juan Gutierrez. On August 28, 2026, Defendant filed a motion to seal its motion as it pertains to Plaintiff Jane Doe O.A. Plaintiffs filed oppositions to the motions to compel on September 10, 2026, and Defendant filed replies on September 16, 2026.

Request for judicial notice

The Court DENIES Plaintiff's request for judicial notice of the three orders issued by other California Superior Courts concerning motions to compel mental or neuropsychological examinations. The Court finds the orders irrelevant and unnecessary to the resolution of the instant motions

II. LEGAL STANDARD

"Any party may obtain discovery . . . by means of a physical or mental examination of (1) a party to the action, (2) an agent of any party, or (3) a natural person in the custody or under the legal control of a party, in any action in which the mental or physical condition . . . of that party or other person is in controversy in the action." (Code Civ. Proc., § 2032.020, subd. (a).)

In a personal injury action, the defendant may demand one physical examination of plaintiff as of right, without advance leave of the court. (Code Civ. Proc., § 2032.220.)

If a defendant seeks a further physical examination of plaintiff, or a mental examination, the defendant must first file a motion and “obtain leave of court.” (Code Civ. Proc., § 2032.310, subd. (a).) Such a motion must “specify the time, place, manner, conditions, scope, and nature of the examination, as well as the identity and the specialty, if any, of the person or persons who will perform the examination.” (Id., subd. (b).) The court may grant such a motion “only for good cause shown.” (Id., § 2032.320, subd. (a).) A showing of good cause generally requires “that the party produce specific facts justifying discovery and that the inquiry be relevant to the subject matter of the action or reasonably calculated to lead to the discovery of admissible evidence.” (Vinson v. Super. Ct. (1987) 43 Cal.3d 833, 840.)

The moving party must support the motion with a meet and confer declaration. (Code Civ. Proc., § 2032.310, subd. (b).) A meet and confer declaration must state facts “showing a reasonable and good faith attempt at an informal resolution of each issue presented by the motion.” (Code Civ. Proc., § 2016.040.)

The examination will be limited to whatever condition is “in controversy” in the action. (Code Civ. Proc., § 2032.020, subd. (a).) “An order granting a physical or mental examination shall specify the person or persons who may perform the examination, as well as the time, place, manner, diagnostic tests and procedures, conditions, scope, and nature of the examination.” (Code Civ. Proc., § 2032.320, subd. (d).) “The court is to describe in detail who will conduct the examination, where and when it will be conducted, the conditions, scope and nature of the examination, and the diagnostic tests and procedures to be employed. The way to describe these ‘diagnostic tests and procedures’—fully and in detail—is to list them by name.” (Carpenter v. Super. Ct. (2006) 141 Cal.App.4th 249, 260.)

III. ANALYSIS

Defendant brings three substantially similar motions to compel Plaintiffs Jane Doe E.Y., Jane Doe R.C., and Jane Doe O.A. to submit to independent mental examinations to be conducted by Juan Manuel Gutierrez, Ph.D., A.B.P.S. Defendant proposes a telephonic interview followed by an in-person examination at Resnick & Louis, P.C., 101 South First Street, Suite 408, Burbank, California. The proposed in-person examinations are scheduled for October 20, 2026, for R.C., for October 21, 2026, for O.A., and October 22, 2026, for E.Y., each at 9:00 a.m. (Notices, p. 2.)

Defendant argues good cause exists for each examination because Plaintiffs seek damages for ongoing emotional and psychological injuries allegedly resulting from Defendant’s conduct, thereby placing their mental conditions in controversy. Defendant contends the examinations are necessary to evaluate the existence, nature, extent, causation and prognosis of the claimed injuries and to permit Defendant to adequately prepare for trial. (Motions, p. 7.)

Plaintiffs do not dispute that their claimed emotional injuries place their mental conditions in controversy or that Defendant is entitled to conduct mental examinations. (Oppositions, p.1.) Rather, Plaintiffs object to the proposed scope, manner and conditions of the examination. Plaintiffs request that there be one examination in one session, no preliminary telephonic assessment, no inquiry into finances or family history, no disclosure of third-party private information, no unsupported testing, complete audio recording, and direct delivery of raw data and examination materials to counsel under enforceable protective terms. (Id.) Finally, Plaintiffs request that the examination not occur at Defense Counsel’s office, but rather at the examiner’s professional office or a neutral clinical facility, (Id. at p. 13.)

The Court makes the following findings:

First, the parties agree that Plaintiffs claimed emotional injuries place their mental conditions in controversy and that Defendant is entitled to conduct mental examinations. Thus, the Court finds good cause exists for the examinations. The dispute concerns the scope, manner, and conditions under which the examinations may proceed.

Scope of clinical review

Plaintiffs object to the proposed scope of the clinical interview, particularly Defendant's proposed inquiry into finances, family history and private information concerning third parties. Defendant responds that the proposed restrictions would prevent Dr. Gutierrez from evaluating causation, differential diagnosis, symptom validity and the nature and extent of Plaintiffs claimed injuries. (Replies, pp. 4-6.)

Defendant submits the declaration of Dr. Gutierrez who opines that the testing is material because family dynamics, developmental history, relationship functioning, traumatic experiences, psychological stressors, and financial stressors may bear on emotional functioning, symptom persistence, and alternative explanations for Plaintiffs' reported complaints. (Gutierrez Decl., ¶¶ 16-19.)

The Court finds that Defendant may inquire into potential alternative causes of Plaintiffs claimed emotional distress. Where a plaintiff alleges ongoing emotional and psychological injuries caused by the defendant's conduct, the mental condition placed in controversy includes not only the nature and extent of the claimed injury, but also its cause. (Doyle v. Superior Court (1996) 50 Cal.App.4th 1878, 1887.) However, Plaintiffs' waiver of their privacy rights is not unlimited; the inquiry must remain directly relevant to the mental conditions placed at issue and essential to a fair resolution of the action. (Vinson v. Superior Court (1987) 43 Cal.3d 833, 842; Britt v. Superior Court (1978) 20 Cal.3d 844, 859.)

Thus, Dr. Gutierrez may inquire into Plaintiffs' prior mental health history and family, relationship, psychosocial, employment, and financial stressors to the extent reasonably directed at identifying alternative causes or contributing factors to the emotional injuries Plaintiffs place at issue. This limitation is consistent with Dr. Gutierrez's declaration, in which he explains that these areas are relevant because they may bear on Plaintiffs' emotional functioning, symptom presentation and persistence, differential diagnosis, causation, and alternative explanations for their reported symptoms. (Gutierrez Decl., ¶¶ 16-19.) The examination shall not extend into unrelated private matters merely because they fall within these general subject areas.

Testing

As to testing, Plaintiffs object that the proposed list contains more than 30 potential tests without explanation. Dr. Gutierrez declares that standardized psychological and neuropsychological testing is necessary to conduct a comprehensive assessment of Plaintiffs' emotional, cognitive, and functional conditions. He further states that the specific tests cannot always be determined in advance because test selection depends on the examinee's presentation, reported symptoms, observed functioning, educational history, language abilities, psychological presentation, and information obtained during the interview. (Gutierrez Decl., ¶¶ 10-15.)

The Court finds this explanation reasonable and finds that standardized psychological and neuropsychological testing is appropriate to evaluate the conditions Plaintiffs have placed at issue. However, the proposed tests must be reasonable in number and duration. Absent good cause, unduly excessive or prolonged testing will not be permitted.

Telephonic interview and location

As to the telephonic interview, the Court agrees with Plaintiffs that a separate telephonic assessment is unnecessary. Defendant has not sufficiently established the need for a separate telephonic assessment in addition to the in-person examination. Thus, the request for a separate telephonic interview is DENIED. The examination shall take place during a single in-person session.

As to location, the Court agrees with Plaintiffs that the examination should not occur at defense counsel's office. The examination shall instead take place at Dr. Gutierrez's professional office or another neutral clinical facility.

Audio recording and raw data

Finally, Plaintiffs request that the entire mental examinations be audio recorded, including the examination itself, all testing, and any communications occurring during breaks. (Oppositions, p. 10.) Plaintiffs further request that the raw data and recordings be provided directly to counsel under a protective order, relying on *Randy's Trucking, Inc. v. Superior Court* (2023) 91 Cal.App.5th 818.

Defendant states that Dr. Gutierrez has agreed to provide raw data pursuant to an appropriate protective order. (Fidler Decl., ¶¶ 7-8.)

The Court finds Plaintiffs' requests reasonable. Thus, the entire mental examination shall be audio recorded, and the recording and raw data shall be provided directly to Plaintiffs' counsel pursuant to an appropriate protective order.

Motion to seal

Defendant moves to seal portions of its August 25, 2026, motion to compel Plaintiff Jane Doe O.A. to submit to an independent mental examination, which inadvertently disclosed Plaintiff's personal identifying information, including her name, residential address, date of birth, insurance information and healthcare-provided information.

The Court finds that Plaintiff has a privacy interest in the personal identifying information and that redaction of the identified information adequately protects that interest without restricting public access to the remainder of the filing. Thus, the motion is GRANTED. Defendant has already filed a redacted version of the motion on August 26, 2026.

IV. CONCLUSION AND ORDER

The Court GRANTS in part Defendant's motions to compel IMEs of Plaintiffs Jane Doe E.Y., Jane Doe R.C., and Jane Doe O.A. by Dr. Gutierrez. The examinations shall occur as noticed, on October 20, 21 and 22, during a single in-person session, without a separate telephonic interview, at Dr. Gutierrez's professional office or another neutral clinical facility agreed upon by the parties.

The entire examinations shall be audio recorded, and the raw data shall be provided to Plaintiffs' counsel pursuant to an appropriate protective order.

The Court further GRANTS Defendant's motion to seal.

Defendant is to give notice.

Dated: September 23, 2026

JARED D. MOSES

JUDGE OF THE SUPERIOR COURT